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California restaurants may get yearlong extension for serving streetside drinks

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Legislation expanding the ability of California restaurants and bars to serve cocktails in streetside seating during the coronavirus crisis has passed the key state Senate Health Committee.

Assembly Bill 61 extends by a year a concession Gov. Gavin Newsom put in place as a temporary emergency order on March 4, 2020, that enables restaurants to serve alcohol outside — something normally barred by the California Alcohol Beverage Control division. The order was set to expire at the latest Jan. 1, 2022. If the proposed law is approved, establishments could continue to serve alcohol outside for another year.

Dining outdoors was an option for diners who may have been either reluctant or hesitant about eating inside due to COVID-19. Because of the delta variant continuing to thrive, some people are still worried.

"So many people are going to take a while to feel comfortable to come indoors to eat again," Sonoma Valley Chamber of Commerce CEO Mark Bodenhamer said. "It's important to help restaurants with all these challenges. Many of them have enormous debt."

Erin Riley, owner of Be Bubbly in Napa, expressed gratitude over the stopgap measure but shared concerns the latest surge may bring added restrictions that will make another hard-fought winter season harder to survive in.

"I can't do a $10,000-a-month tent this winter. I gotta have a lifeline. Winter is our slowest season," she said.

The California Restaurant Association, which sponsored AB 61, reported the pandemic cut 2.5 million jobs in the industry and resulted in the loss of sales amounting to about $120 billion. For some, a rebound could take a few years.

"The restaurant industry has been hit hard by the pandemic. With indoor dining still closed in most places, outdoor dining has become an important lifeline for restaurants," association Chairwoman Madelyn Alfano said.

The bill's author, Assemblyman Jesse Gabriel, D-Woodland Hills, told the Business Journal that throwing the lifeline was precisely the intent of the proposed law.

"It's timely. We could be going outside again this winter," he said. "It's really sad. A lot of (the restaurants) are hanging on by a thread."

Gabriel also noted many eateries have gone to great lengths to erect outdoor dining spaces. "Parklets," those wooden structures constructed in street side parking spaces, became a common sight starting last summer. Riley spent $8,000 to have hers constructed.

"This (bill) empowers them. It takes into consideration the investment they've made to set up their outdoor spaces," he said.

The bill also instructs cities and counties to grant these restaurants the outdoor dining spaces, even if it means coveted parking spaces will be eliminated and the local governments fail to meet their parking-space requirements as outlined in their zoning codes. Conditional-use permits have allowed restaurant owners to use the public space.

"I don't see anything in this law, if it passes, that would change what Windsor is doing," Windsor Community Development Director Tim Ricard said, adding the community seems to support the idea of having the outdoor

eating spaces.

The town council plans to take up making parklets more permanent for its upcoming meeting on Oct. 6.

As of press time, AB 61 has moved on to the Senate Appropriations Committee and is expected to be heard on Aug. 26.

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